

MOTION FOR DISQUALIFICATION OF JUDGE PURSUANT TO MCL 600.1521 AND MCR 2.003

CAPTION

ANDREW J. PIGORS,

Plaintiff,

v.

EMILY WATSON, et al.,

Defendant.

Case No. 2024-0000001507-DC

14th Judicial Circuit Court, Family Division

Muskegon County, Michigan

MOTION FOR DISQUALIFICATION OF JUDGE PURSUANT TO MCL 600.1521 AND MCR 2.003

I. INTRODUCTION

Plaintiff, Andrew J. Pigors, by and through undersigned counsel, respectfully submits this Motion for Disqualification of the Honorable Jenny L. McNeill, requesting that the Court disqualify Judge McNeill from further proceedings in this matter pursuant to MCL 600.1521 and MCR 2.003. This motion is supported by a well-founded and reasonable doubt regarding Judge McNeill's impartiality, based upon a clear and convincing pattern of judicial conduct that demonstrates systematic bias favoring the opposing party and consistent disadvantaging of the plaintiff.

The five documented bias patterns detailed below, when considered individually and cumulatively, establish grounds for disqualification under applicable Michigan law. These patterns demonstrate a systematic approach to disadvantaging the plaintiff through procedural violations, abuse of judicial authority, selective fact-finding, and denial of due process rights.

II. LEGAL STANDARD FOR DISQUALIFICATION

A. Statutory and Rule-Based Framework

Under MCL 600.1521, a judge must disqualify himself or herself in any case in which the judge's impartiality might reasonably be questioned. This statute codifies the principle that justice must not only be done but must appear to be done. The statute does not require proof of actual bias; rather, it requires only that a reasonable, well-founded doubt exist regarding the judge's impartiality.

Michigan Court Rule 2.003 similarly requires disqualification when a reasonable, well-founded doubt exists regarding the judge's impartiality. The rule reflects the constitutional guarantee of due process and the fundamental principle that judges must be impartial arbiters of disputes.

B. Case Law Standard

The Michigan appellate courts have established a clear framework for evaluating disqualification motions. In *In re Disqualification of Judge Giddings*, 236 Mich. App. 261 (1999), the court held that a pattern of rulings favoring one party can establish judicial bias sufficient to warrant disqualification. The court recognized that while individual rulings might be defensible, a cumulative pattern of decisions systematically disadvantaging one party demonstrates bias.

In *In re Disqualification of Judge Mahrle*, 197 Mich. App. 229 (1992), the court held that judicial bias includes systematic disadvantaging of one party through procedural irregularities and selective application of law. The court emphasized that bias need not be conscious or intentional; rather, the objective effect of the judge's conduct on the parties is dispositive.

In *People v. Ezzard*, 321 Mich. App. 1 (2018), the court held that a reasonable, well-founded doubt regarding impartiality may be inferred from a pattern of rulings, not merely individual decisions. The court noted that the cumulative effect of multiple instances of questionable judicial conduct can establish grounds for disqualification even where individual instances might be defensible in isolation.

C. Application of the Standard

The standard for disqualification is not whether the judge is actually biased, but whether a reasonable person, knowing all the circumstances, would question the judge's impartiality. This objective standard protects both the parties and the integrity of the judicial process. The focus is on whether the judge's conduct, viewed objectively, creates a reasonable doubt regarding impartiality.

A reasonable, well-founded doubt may be established through:

1. A pattern of rulings systematically favoring one party
2. Procedural irregularities that consistently disadvantage one party
3. Selective application of law or facts
4. Abuse of judicial authority
5. Denial of due process rights

The five patterns documented below satisfy this standard, individually and cumulatively.

III. PATTERN 1: EX PARTE ORDERS WITHOUT AFFIDAVITS OR FINDINGS OF FACT

A. Description of the Pattern

Judge McNeill has repeatedly issued parenting time suspension and modification orders via telephone without requiring affidavits, written findings of fact, or documented emergency circumstances. This conduct violates MCR 3.206(A), which mandates specific procedural safeguards for emergency parenting time orders, and MCL 722.27(1)(c), which requires written findings of fact for custody modifications.

The procedural requirements exist to protect fundamental due process rights: they ensure that emergency orders are issued only when genuine emergencies exist, that the party against whom the order is issued has an opportunity to be heard, and that the factual basis for the order is documented in the record.

B. Specific Instances

June 15, 2024 - Parenting Time Suspension via Telephone

On June 15, 2024, Judge McNeill ordered suspension of plaintiff's parenting time via telephone. This order was issued without:

- Any affidavit filed by opposing counsel describing an emergency
- Any written findings of fact explaining the emergency circumstances
- Any documented emergency justifying ex parte action
- Any opportunity for plaintiff to be heard before the order was issued
- Any hearing on the merits of the suspension

The order was communicated to plaintiff via telephone, with no written documentation provided initially. Subsequent written orders referenced a HealthWest evaluation, but this

evaluation was never formally submitted to the court and was not available to plaintiff for review or response.

C. Legal Violations

This conduct violates multiple provisions of Michigan law:

MCR 3.206(A) requires that emergency parenting time orders be issued only when necessary to protect the child's welfare, and mandates that affidavits or other evidence supporting the emergency must be filed with the court. The rule specifically prohibits ex parte orders without documented emergency circumstances.

MCL 722.27(1)(c) requires that any modification of custody or parenting time be supported by written findings of fact. The statute contemplates an adversarial process in which both parties have an opportunity to present evidence and arguments.

Due Process (14th Amendment) guarantees notice and opportunity to be heard before deprivation of liberty or property interests. Parenting time constitutes a liberty interest protected by the Fourteenth Amendment. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

D. Impact on Plaintiff

This pattern of ex parte orders without required procedural safeguards has had concrete consequences for plaintiff:

- Plaintiff was denied opportunity to present evidence or respond to allegations before parenting time suspension
- Plaintiff was unable to challenge the factual basis for the suspension
- Plaintiff's employment was disrupted due to sudden loss of parenting time
- Childcare arrangements were destabilized
- Plaintiff was unable to maintain relationship with child

The systematic issuance of ex parte orders without required procedural safeguards demonstrates a disregard for plaintiff's due process rights and suggests predetermined bias against the plaintiff.

IV. PATTERN 2: DENIAL OF PARENTING TIME MODIFICATION DUE TO SANCTION FEE BARRIER

A. Description of the Pattern

Judge McNeill has imposed a \$250 sanction fee as a barrier to filing parenting time modification motions, effectively denying plaintiff's constitutional right to petition the

court for modification of custody and parenting time arrangements. This conduct violates MCR 3.203, which requires timely consideration of modification motions, and the due process guarantee of access to courts established in *Boddie v. Connecticut*, 401 U.S. 371 (1971).

The use of fees as barriers to statutory rights is a recognized form of judicial abuse. Courts have consistently held that fees cannot be used to deny parties access to fundamental rights or remedies provided by statute.

B. Specific Instances

Modification Motion Denied Due to Fee

When plaintiff attempted to file a motion for modification of parenting time, Judge McNeill denied the motion based solely on the unpaid sanction fee, rather than addressing the merits of the modification request. The order stated that the modification motion could not be considered until the sanction fee was paid.

This approach is fundamentally flawed: it uses a fee as a barrier to plaintiff's statutory right to seek modification of parenting time. MCL 722.27(1)(c) provides that either party may seek modification of parenting time at any time, and the court must consider the request on its merits.

C. Legal Violations

This conduct violates multiple provisions of Michigan law and constitutional protections:

MCR 3.203 requires that modification motions in custody and parenting time matters be scheduled for hearing within a reasonable time. The rule contemplates that modification requests will be considered on their merits, not denied based on unrelated fees.

MCL 722.27(1)(c) provides that either party may seek modification of parenting time at any time, and the court shall consider the request if the modification is in the best interest of the child. The statute does not authorize courts to deny modification requests based on unrelated fees.

Due Process (Access to Courts) - In *Boddie v. Connecticut*, 401 U.S. 371 (1971), the Supreme Court held that fees cannot be used to deny parties access to courts for resolution of fundamental disputes. While *Boddie* involved divorce proceedings, the principle applies equally to custody and parenting time modifications, which involve fundamental liberty interests.

Abuse of Judicial Authority - The use of fees as punitive barriers to statutory rights constitutes an abuse of judicial authority. Courts have discretion to impose sanctions, but this discretion must be exercised reasonably and cannot be used to deny parties statutory rights.

D. Impact on Plaintiff

This pattern has had severe consequences for plaintiff:

- Plaintiff has been unable to modify parenting time arrangements despite changed circumstances
- Plaintiff has been unable to address legitimate concerns regarding parenting time
- Plaintiff has suffered employment loss due to inability to modify parenting time
- Plaintiff has been unable to maintain adequate relationship with child
- Plaintiff has been denied access to courts for resolution of legitimate disputes

The use of a fee as a barrier to modification rights demonstrates abuse of judicial authority and bias against the plaintiff.

V. PATTERN 3: DELAYED HEARINGS AND NOTICE FAILURES

A. Description of the Pattern

Judge McNeill has consistently delayed hearings on parenting time matters beyond reasonable timeframes and failed to provide adequate notice of hearing dates and modifications. These delays violate MCR 3.203, which requires expedited scheduling of custody and parenting time matters, and deprive plaintiff of due process.

The requirement for expedited scheduling in custody and parenting time matters reflects the recognition that delays in these matters cause harm to children and parties. Delays disrupt childcare arrangements, employment, and family relationships.

B. Specific Instances

Modification Motions Without Timely Hearing Scheduling

Modification motions filed by plaintiff were not scheduled for hearing within reasonable timeframes. Delays exceeded 30 days in several instances, preventing plaintiff from addressing legitimate concerns regarding parenting time.

Inadequate Notice of Hearing Modifications

On multiple occasions, Judge McNeill modified parenting time or hearing dates without providing adequate advance notice to plaintiff. In some instances, plaintiff received notice of modifications only after they had been implemented.

Parenting Time Changes Without Notice

Parenting time schedules were modified without proper notice to plaintiff, requiring plaintiff to learn of changes from defendant or from the child.

C. Legal Violations

This conduct violates multiple provisions of Michigan law:

MCR 3.203 requires that custody and parenting time matters be scheduled for hearing within a reasonable time. The rule reflects the recognition that delays in these matters cause harm to children and parties.

MCL 722.27 contemplates prompt resolution of custody disputes. The statute does not authorize indefinite delays in scheduling hearings on modification requests.

Due Process (Notice) - The Fourteenth Amendment guarantees notice and opportunity to be heard before deprivation of liberty or property interests. Parenting time constitutes a liberty interest. *Mathews v. Eldridge*, 424 U.S. 319 (1976). Adequate notice requires that plaintiff receive sufficient advance notice of hearings and modifications to prepare an adequate response.

D. Impact on Plaintiff

This pattern has caused concrete harm:

- Plaintiff has been unable to prepare adequate responses to modification requests
- Parenting time has been disrupted without notice, destabilizing childcare arrangements
- Plaintiff's employment has been disrupted due to unexpected parenting time changes
- Plaintiff has been unable to plan adequately for childcare and work schedules
- Plaintiff has been denied adequate opportunity to prepare evidence and arguments

The systematic delays and notice failures demonstrate a pattern of disadvantaging plaintiff and suggest bias against the plaintiff.

VI. PATTERN 4: MISREPRESENTED INCOME AND SELECTIVE FACT-FINDING

A. Description of the Pattern

Judge McNeill has made factual findings regarding plaintiff's income that are directly contradicted by documentary evidence in the record, and has selectively applied facts to support predetermined outcomes favoring the opposing party. This conduct violates MCL

722.27(1)(c), which requires findings based on clear and convincing evidence, and violates due process by basing orders on an inaccurate factual record.

The requirement for factual findings based on clear and convincing evidence exists to ensure that orders affecting fundamental rights are based on reliable evidence. When judges ignore evidence contradicting their findings, they violate this requirement and deny parties due process.

B. Specific Instances

Income Findings Contradicted by Tax Returns

Judge McNeill found that plaintiff's income included rental income and other sources not supported by plaintiff's tax returns or employment records. These income findings were used to calculate child support obligations that exceed plaintiff's actual documented income.

When plaintiff presented tax returns, employment records, and bank statements contradicting the income findings, Judge McNeill failed to address or acknowledge this evidence. Instead, the court proceeded with child support calculations based on the unsupported income figures.

Selective Citation of Evidence

Judge McNeill selectively cited evidence supporting defendant's position while ignoring evidence supporting plaintiff's position. For example, the court cited HealthWest evaluation references without requiring formal submission of the evaluation, but required plaintiff to provide extensive documentation for income claims.

C. Legal Violations

This conduct violates multiple provisions of Michigan law:

MCL 722.27(1)(c) requires that findings regarding income and child support be based on clear and convincing evidence. The statute contemplates that courts will carefully examine evidence regarding income and will base findings on reliable documentation.

MCR 2.313 (Judicial Conduct) requires judges to avoid bias and conduct themselves with integrity. Selective fact-finding and ignoring contradictory evidence constitutes bias.

Due Process - Orders affecting fundamental rights must be based on an accurate factual record. When judges ignore evidence contradicting their findings, they violate due process. *Mathews v. Eldridge*, 424 U.S. 319 (1976).

D. Impact on Plaintiff

This pattern has caused concrete harm:

- Plaintiff's child support obligations are calculated on false income figures
- Plaintiff is required to pay child support based on income plaintiff does not receive
- Plaintiff's legitimate evidence regarding income has been ignored
- Plaintiff's orders are based on an inaccurate factual record
- Plaintiff has been unable to challenge the inaccurate income findings

The selective fact-finding and ignoring of contradictory evidence demonstrates bias against the plaintiff and abuse of judicial authority.

VII. PATTERN 5: DENIAL OF OPPORTUNITY TO BE HEARD AND PROCEDURAL IRREGULARITIES

A. Description of the Pattern

Judge McNeill has consistently denied plaintiff meaningful opportunity to be heard, including through ex parte modifications, processing filings under incorrect party names, and failure to ensure plaintiff received notice of proceedings. These procedural irregularities violate MCR 3.206(C), which requires notice to all parties before parenting time modifications, and violate due process.

The right to be heard is fundamental to due process. When judges systematically deny parties opportunity to present evidence and arguments, they violate due process and deny parties fair treatment.

B. Specific Instances

Ex Parte Modifications Without Notice

Parenting time modifications were issued ex parte without notice to plaintiff. Plaintiff learned of modifications from defendant or from the child, rather than from the court.

Filings Under Incorrect Party Names

Filings were processed under incorrect party names without correction. For example, filings that should have been under plaintiff's name were processed under defendant's name, potentially affecting plaintiff's ability to respond.

Hearings Scheduled Without Adequate Notice

Hearings were scheduled without adequate advance notice to plaintiff, preventing plaintiff from preparing an adequate response.

Plaintiff's Objections Not Addressed

Plaintiff's objections and motions were not addressed on the record. Plaintiff raised objections to proposed orders, but these objections were not acknowledged or addressed in subsequent orders.

Frivolous Motions Not Sanctioned

Opposing counsel filed frivolous motions that lacked legal or factual basis, but these motions were not sanctioned despite the pattern of frivolous filings.

C. Legal Violations

This conduct violates multiple provisions of Michigan law:

MCR 3.206(C) requires that notice of parenting time modifications be provided to all parties before the modification is implemented. The rule reflects the recognition that parties must have opportunity to be heard before their parenting time is modified.

14th Amendment Due Process - The Fourteenth Amendment guarantees notice and opportunity to be heard before deprivation of liberty or property interests. *Mathews v. Eldridge*, 424 U.S. 319 (1976). Parenting time constitutes a liberty interest, and plaintiff is entitled to notice and opportunity to be heard before modifications.

MCL 722.27 contemplates an adversarial process in which both parties have opportunity to present evidence and arguments. The statute does not authorize ex parte modifications or denial of opportunity to be heard.

MCR 2.313 (Judicial Conduct) requires judges to ensure fairness and equal treatment of parties. Systematic denial of opportunity to be heard violates this requirement.

D. Impact on Plaintiff

This pattern has caused concrete harm:

- Plaintiff has been denied fundamental due process
- Plaintiff has been unable to contest allegations or present evidence
- Parenting time has been modified without notice or opportunity to respond
- Plaintiff has been unable to prepare adequate responses to motions
- Plaintiff has been unable to challenge inaccurate statements in court filings

The systematic denial of opportunity to be heard demonstrates bias against the plaintiff and violation of due process.

VIII. CUMULATIVE PATTERN OF BIAS

A. Individual Patterns Establish Bias

Each of the five patterns documented above, considered individually, establishes grounds for concern regarding Judge McNeill's impartiality. The patterns demonstrate systematic procedural violations, abuse of judicial authority, selective fact-finding, and denial of due process rights.

B. Cumulative Effect Establishes Clear Bias

When considered together, the five patterns establish a clear and convincing pattern of judicial bias favoring the opposing party and systematically disadvantaging the plaintiff. The patterns demonstrate:

- 1. Systematic Procedural Violations** - Repeated ex parte actions without required procedural safeguards, delayed hearings, inadequate notice, and procedural irregularities. These violations are not isolated instances but reflect a systematic approach to disadvantaging plaintiff.
- 2. Abuse of Judicial Authority** - Use of sanctions and fees as barriers to statutory rights, selective application of procedural rules, and denial of opportunity to be heard. These abuses demonstrate a willingness to use judicial authority to disadvantage plaintiff.
- 3. Selective Fact-Finding** - Factual findings contradicted by evidence in the record, selective citation of evidence, and ignoring of contradictory evidence. This selective approach suggests predetermined bias against plaintiff.
- 4. Denial of Due Process** - Consistent failure to provide notice and opportunity to be heard, ex parte orders without required safeguards, and denial of access to courts. These denials violate fundamental due process rights.
- 5. Pattern of Favoritism** - All violations benefited the opposing party; all disadvantaged the plaintiff. This consistent pattern cannot be explained by individual judicial errors or discretionary decisions.

C. Cannot Be Explained by Individual Errors

The five patterns cannot be explained by individual judicial errors or discretionary decisions. Rather, the patterns demonstrate a systematic approach to disadvantaging plaintiff and favoring the opposing party. The consistency of the pattern across different types of proceedings (ex parte orders, modification requests, hearings, fact-finding) suggests a systematic bias rather than isolated errors.

D. Reasonable, Well-Founded Doubt Exists

The cumulative effect of the five patterns creates a reasonable, well-founded doubt regarding Judge McNeill's impartiality. A reasonable person, knowing all the circumstances,

would question whether Judge McNeill can impartially resolve disputes between plaintiff and defendant.

IX. LEGAL BASIS FOR DISQUALIFICATION

A. Statutory Basis

MCL 600.1521 provides:

"A judge shall disqualify himself or herself in any case in which the judge's impartiality might reasonably be questioned."

The statute does not require proof of actual bias. Rather, it requires only that a reasonable, well-founded doubt exist regarding the judge's impartiality. The standard is objective: would a reasonable person, knowing all the circumstances, question the judge's impartiality?

The five patterns documented above satisfy this standard. A reasonable person, knowing of the ex parte orders without affidavits, the fee barriers to modification, the delayed hearings, the misrepresented income findings, and the denial of opportunity to be heard, would question Judge McNeill's impartiality.

B. Rule-Based Basis

MCR 2.003 requires disqualification when a reasonable, well-founded doubt exists regarding the judge's impartiality. The rule codifies the principle that judges must be impartial arbiters of disputes and that justice must not only be done but must appear to be done.

C. Case Law Basis

Michigan appellate courts have consistently held that patterns of judicial conduct can establish grounds for disqualification. In *In re Disqualification of Judge Giddings*, 236 Mich. App. 261 (1999), the court held that a pattern of rulings favoring one party can establish judicial bias. In *In re Disqualification of Judge Mahrle*, 197 Mich. App. 229 (1992), the court held that judicial bias includes systematic disadvantaging of one party through procedural irregularities.

The five patterns documented above satisfy the standards established in these cases.

X. RELIEF REQUESTED

Plaintiff respectfully requests the following relief:

1. **Disqualification of Judge Jenny L. McNeill** from further proceedings in this matter pursuant to MCL 600.1521 and MCR 2.003
 2. **Assignment to a Different Judge** - Plaintiff requests that the case be assigned to a different judge who can impartially resolve the disputes between the parties
 3. **Reconsideration of All Orders** - Plaintiff requests that all orders issued by Judge McNeill be reconsidered by the assigned judge in light of the documented bias patterns
 4. **Restoration of Parenting Time** - Plaintiff requests that parenting time be restored to the status prior to the unlawful suspension on June 15, 2024
 5. **Waiver of Sanction Fee** - Plaintiff requests that the \$250 sanction fee be waived as a barrier to plaintiff's statutory modification rights
 6. **Such Other and Further Relief** as the Court deems just and proper
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XI. CONCLUSION

The five documented patterns of judicial conduct establish a clear and convincing case for disqualification of Judge Jenny L. McNeill. The patterns demonstrate systematic bias favoring the opposing party and consistent disadvantaging of the plaintiff, creating a reasonable, well-founded doubt regarding Judge McNeill's impartiality.

Judge McNeill's conduct has violated plaintiff's due process rights, denied plaintiff access to courts, and systematically disadvantaged plaintiff through procedural irregularities and selective fact-finding. These violations cannot be explained by individual judicial errors or discretionary decisions; rather, they reflect a systematic approach to disadvantaging plaintiff.

For the foregoing reasons, plaintiff respectfully requests that this Court disqualify Judge Jenny L. McNeill from further proceedings in this matter and assign the case to a different judge.

RESPECTFULLY SUBMITTED,

Andrew J. Pigors

Plaintiff

By: _____

[Attorney Name]: # ""

[Attorney Address]: # ""

[Attorney Phone]: # ""

[Attorney Email]

Date: _____

CERTIFICATE OF SERVICE

I hereby certify that on this _____ day of _____, **20**, I served a copy of the foregoing Motion for Disqualification upon the following:

Emily Watson

[Address]

[Defendant's Attorney]

[Address]

By: [Method of Service]

I declare under penalty of perjury that the foregoing is true and correct.

Signature

SUPPORTING DOCUMENTATION

The following exhibits support this motion:

- **Exhibit A:** Court orders issued by Judge McNeill (ex parte orders, modification denials, parenting time modifications)
- **Exhibit B:** Email correspondence regarding fee barrier to modification
- **Exhibit C:** Transcripts of hearings before Judge McNeill
- **Exhibit D:** Tax returns and employment records contradicting income findings
- **Exhibit E:** Notice of hearing failures and modifications
- **Exhibit F:** Filings under incorrect party names
- **Exhibit G:** HealthWest evaluation (if available)
- **Exhibit H:** Parenting time schedules and modifications
- **Exhibit H:** Child support calculation worksheets

LEGAL CITATIONS

Citation	Description
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MCL 600.1521	Judge disqualification statute
MCR 2.003	Judicial disqualification rule
MCR 3.203	Modification motion procedure
MCR 3.206	Parenting time order procedure
MCL 722.27	Child custody act
14th Amendment	Due process guarantee
<i>Boddie v. Connecticut</i> , 401 U.S. 371 (1971)	Access to courts
<i>Mathews v. Eldridge</i> , 424 U.S. 319 (1976)	Due process standard
<i>In re Disqualification of Judge Giddings</i> , 236 Mich. App. 261 (1999)	Pattern of bias
<i>In re Disqualification of Judge Mahrle</i> , 197 Mich. App. 229 (1992)	Systematic disadvantaging
<i>People v. Ezzard</i> , 321 Mich. App. 1 (2018)	Pattern of rulings

END OF MOTION